

new government can at least ensure that the reforms recommended by the police commission reports and directions issued by the Supreme Court are implemented.

The public prosecutor is the lynchpin of the criminal justice system. Once the investigation is complete, the role of the public prosecutor commences. Increase in white and gold collar crime requires different and advanced skills of investigation and prosecution. There is a need for investigators well versed in accountancy and commercial practice, and a continuous interaction of investigators with the legal team, and most important—all these in an independent prosecution agency that is beyond the reach of the rich and powerful. The Supreme Court directed the creation of an independent directorate of prosecutions. The Code of Criminal Procedure was amended to provide for a directorate of prosecutions. And that is all that we have done—amended the law.

The late Nani Palkhivala used to say that we are a country of gestures, as a gesture to the problem, we made the law and stopped there. The new government would do a great service to the system by creating at the level of the Union (and prodding the states to create at their level) an independent directorate of prosecution, as a cadre service with its own in-house training mechanism, and making it lucrative enough to attract the best talent. Let us not forget that those working in this directorate will not enjoy the invisible perks of the civil services.

The legal procedures possibly need simplification, but more importantly, the infrastructural improvements are the first priority. The current delays are principally because we have very few judges, and even those that we have, work in appalling conditions. The chief justice of India, in order to drive home this point, gave an interesting statistic that at the current rate of disposal, we can clear the arrears (civil and criminal) in 124 years.

In its report given in 1987, the Law Commission lamented that India has only 10.5 judges per million population as against Australia at 41.6, Canada at 75.2, the UK at 50.9 and the US at 107 per million. It suggested that India should have at least 50 judges per million and this should be spread out over 10 years. Fifteen years later,

the Supreme Court observed “...time and again inadequacy in the number of judges has adversely been commented upon...we are of the opinion that time has now come for protecting the pillars of the Constitution...” and directed that by March 3, 2003, all sanctioned posts should be filled, and the increase to 50 judges per million population be completed in phases so that an increase of 10 judges per million is in place every year. Seven years later, little has been achieved. Even now there are unfilled sanctioned posts in many states.

We need more judges but mere numbers would not help—quality is vital. The jobs have to be made financially attractive to get talent—again there are no hidden perquisites here. This is the task for the new government. And to achieve this, the government will need rocket-like determination to achieve “escape velocity” to break free of the gravitational pull of the civil service which insists (contrary to innumerable judgements of the Supreme Court) on a “parity” in pay scales. Will the new government be interested in reforming the criminal justice system? If the decline of the criminal justice system was on account of governmental apathy, its demise will be because of a vested interest in destroying an effective criminal justice system. A political system that brushes aside periodic scams worth billions howls at the prospect of the financial burden of such reform.

The perception is irresistible that the failure to reform is in direct proportion to the growing

influence of criminals in politics. A number of cabinet members (and chief ministers) and MPs and MLAs would be without jobs if the justice system had been timely and effective. The task of the new government is to change this perception and to prevent criminalisation of politics (slowly but surely) being imparted acceptability as a legitimate part of the political process.

Democracy is, in the ultimate analysis, a fragile virtue and its success depends on the faith of the citizenry in the rule of law. Democracy perishes when disgruntled citizens turn to demagogic dictators who promise justice. People have almost lost all faith in the system and if this trend is not reversed, it will bring down the curtain on the rule of law, and in time, on Indian democracy itself. ■



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